

Manish Maheshwari v. State of U.P.

Allahabad High Court · Division Bench · 23 May 2019 · WRIT - C No. 17598 of 2019 · WRIT - C No. 17598 of 2019 · **Writ disposed of; Executive Engineer directed to consider the restoration representation in accordance with the U.P. Electricity Supply Code, 2005, preferably within one month.**

HEADNOTE

A tenant whose named electricity connection was disconnected because another occupant of a different portion of the same premises was in arrears sought restoration by writ. The Division Bench held that restoration of supply is to be dealt with by the Executive Engineer under the U.P. Electricity Supply Code, 2005, and disposed of the petition with a direction to consider and decide the pending representation in accordance with law, most expeditiously and if possible within one month.

FACTUAL SUMMARY

Manish Maheshwari, a tenant of Premises No. 33/97, Topi Bazar, Kanpur Nagar, claimed that an electricity connection standing in his own name had been disconnected because another tenant occupying a different portion of the same premises was in arrears. He sought restoration of supply and produced a representation dated 17 May 2019 already made to the Executive Engineer. Counsel for the State and for the distribution licensee appeared. The High Court did not examine the legality of the disconnection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

restoration of supply; representation to Executive Engineer

HOLDING

Restoration of electricity supply is to be dealt with by the Executive Engineer in accordance with the U.P. Electricity Supply Code, 2005. A writ seeking restoration of a tenant's own connection, disconnected on account of another tenant's arrears in a different portion of the same premises, was disposed of with a direction to consider and decide the pending representation in accordance with law, most expeditiously and if possible within one month of production of a certified copy. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy

A tenant whose named electricity connection was disconnected because another occupant of a different portion of the same premises was in arrears sought restoration by writ. The Division Bench held that restoration of supply is to be dealt with by the Executive Engineer under the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER'S NAMED CONNECTION WAS ILLEGALLY DISCONNECTED ON ACCOUNT OF ANOTHER TENANT'S ARREARS, AND WHETHER RESTORATION WAS DUE AS OF RIGHT

The Court directed the Executive Engineer to consider the representation under the Supply Code without deciding the disconnection on merits. ¶ 1